

Brightwater Cloud Backup - Service Terms

These Service Terms ("Terms") apply between Brightwater Cloud Backup Ltd ("Brightwater", "we") and the customer named in the Order Summary ("you"). This is a synthetic document created for software testing purposes only.

1. The Service

Brightwater provides encrypted online backup of the devices listed in your Order Summary, file versioning for 30 days and restore through the web console.

2. Fees

You agree to pay a subscription fee of \$12 per month per protected device, billed monthly in advance to the payment card on file.

3. Term

The subscription has an initial term of 12 months starting on the activation date shown in the Order Summary.

4. Automatic Renewal

At the end of the initial term the subscription renews automatically for successive 12-month terms at the then-current price.

Section 5 - Acceptable Use

5.1 Content ratings and parental guidance labels are supplied by rights holders and are shown for information only. The Provider will use commercially reasonable efforts to keep the Service available during the hours described in the applicable service description. Scheduled maintenance is announced on the status page at least two business days in advance and is normally performed outside peak viewing hours.

5.2 Availability of individual titles, channels and features may vary by region because of licensing arrangements with rights holders. The Subscriber is responsible for providing a compatible device, a supported browser and an internet connection with sufficient bandwidth. Support requests may be submitted through the help centre, and the Provider aims to respond to standard requests within two business days.

5.3 All software, artwork, trademarks and editorial content made available through the Service remain the property of the Provider or its licensors. The Subscriber may not copy, redistribute, publicly perform or modify any content except as expressly permitted by the features of the Service. The Provider may improve, update or reorganise features of the Service from time to time, provided that the core functionality remains materially similar.

5.4 Accessibility features such as captions and audio descriptions are provided where they are made available by the relevant rights holder. Links to third-party websites are provided for convenience only, and the Provider is not responsible for the content or practices of those websites. Except as expressly stated in this Agreement, the Service is provided on an as-available basis without further warranties of any kind.

5.5 Neither party is liable for delays caused by events beyond its reasonable control, including natural disasters, network outages and acts of public authorities. Formal notices under this Agreement must be sent to the addresses stated in the Order Summary and are effective on receipt. The Subscriber may not transfer this Agreement to another person without the prior written consent of the Provider.

5.6 If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect. Headings are for convenience only and do not affect the interpretation of this Agreement.

Section 6 - Service Changes

6.1 The Subscriber may not copy, redistribute, publicly perform or modify any content except as expressly permitted by the features of the Service. The Provider may improve, update or reorganise features of the Service from time to time, provided that the core functionality remains materially similar. Accessibility features such as captions and audio descriptions are provided where they are made available by the relevant rights holder.

6.2 Links to third-party websites are provided for convenience only, and the Provider is not responsible for the content or practices of those websites. Except as expressly stated in this Agreement, the Service is provided on an as-available basis without further warranties of any kind. Neither party is liable for delays caused by events beyond its reasonable control, including natural disasters, network outages and acts of public authorities.

6.3 Formal notices under this Agreement must be sent to the addresses stated in the Order Summary and are effective on receipt. The Subscriber may not transfer this Agreement to another person without the prior written consent of the Provider. If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect.

6.4 Headings are for convenience only and do not affect the interpretation of this Agreement. The Provider keeps records of service incidents and publishes a summary of material incidents on its status page. Content ratings and parental guidance labels are supplied by rights holders and are shown for information only.

6.5 The Provider will use commercially reasonable efforts to keep the Service available during the hours described in the applicable service description. Scheduled maintenance is announced on the status page at least two business days in advance and is normally performed outside peak viewing hours. Availability of individual titles, channels and features may vary by region because of licensing arrangements with rights holders.

6.6 The Subscriber is responsible for providing a compatible device, a supported browser and an internet connection with sufficient bandwidth. Support requests may be submitted through the help centre, and the Provider aims to respond to standard requests within two business days.

Section 7 - Maintenance Windows

7.1 The Subscriber may not transfer this Agreement to another person without the prior written consent of the Provider. If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect. Headings are for convenience only and do not affect the interpretation of this Agreement.

7.2 The Provider keeps records of service incidents and publishes a summary of material incidents on its status page. Content ratings and parental guidance labels are supplied by rights holders and are shown for information only. The Provider will use commercially reasonable efforts to keep the Service available during the hours described in the applicable service description.

7.3 Scheduled maintenance is announced on the status page at least two business days in advance and is normally performed outside peak viewing hours. Availability of individual titles, channels and features may vary by region because of licensing arrangements with rights holders. The Subscriber is responsible for providing a compatible device, a supported browser and an internet connection with sufficient bandwidth.

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7.5 The Provider may improve, update or reorganise features of the Service from time to time, provided that the core functionality remains materially similar. Accessibility features such as captions and audio descriptions are provided where they are made available by the relevant rights holder. Links to third-party websites are provided for convenience only, and the Provider is not responsible for the content or practices of those websites.

7.6 Except as expressly stated in this Agreement, the Service is provided on an as-available basis without further warranties of any kind. Neither party is liable for delays caused by events beyond its reasonable control, including natural disasters, network outages and acts of public authorities.

Section 8 - Accessibility

8.1 Availability of individual titles, channels and features may vary by region because of licensing arrangements with rights holders. The Subscriber is responsible for providing a compatible device, a supported browser and an internet connection with sufficient bandwidth. Support requests may be submitted through the help centre, and the Provider aims to respond to standard requests within two business days.

8.2 All software, artwork, trademarks and editorial content made available through the Service remain the property of the Provider or its licensors. The Subscriber may not copy, redistribute, publicly perform or modify any content except as expressly permitted by the features of the Service. The Provider may improve, update or reorganise features of the Service from time to time, provided that the core functionality remains materially similar.

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8.5 If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect. Headings are for convenience only and do not affect the interpretation of this Agreement. The Provider keeps records of service incidents and publishes a summary of material incidents on its status page.

8.6 Content ratings and parental guidance labels are supplied by rights holders and are shown for information only. The Provider will use commercially reasonable efforts to keep the Service available during the hours described in the applicable service description.

Section 9 - Third-Party Content

9.1 Links to third-party websites are provided for convenience only, and the Provider is not responsible for the content or practices of those websites. Except as expressly stated in this Agreement, the Service is provided on an as-available basis without further warranties of any kind. Neither party is liable for delays caused by events beyond its reasonable control, including natural disasters, network outages and acts of public authorities.

9.2 Formal notices under this Agreement must be sent to the addresses stated in the Order Summary and are effective on receipt. The Subscriber may not transfer this Agreement to another person without the prior written consent of the Provider. If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect.

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9.6 The Subscriber may not copy, redistribute, publicly perform or modify any content except as expressly permitted by the features of the Service. The Provider may improve, update or reorganise features of the Service from time to time, provided that the core functionality remains materially similar.

Section 10 - Warranties

10.1 The Provider keeps records of service incidents and publishes a summary of material incidents on its status page. Content ratings and parental guidance labels are supplied by rights holders and are shown for information only. The Provider will use commercially reasonable efforts to keep the Service available during the hours described in the applicable service description.

10.2 Scheduled maintenance is announced on the status page at least two business days in advance and is normally performed outside peak viewing hours. Availability of individual titles, channels and features may vary by region because of licensing arrangements with rights holders. The Subscriber is responsible for providing a compatible device, a supported browser and an internet connection with sufficient bandwidth.

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10.6 The Subscriber may not transfer this Agreement to another person without the prior written consent of the Provider. If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect.

Section 11 - Limitation of Liability

11.1 All software, artwork, trademarks and editorial content made available through the Service remain the property of the Provider or its licensors. The Subscriber may not copy, redistribute, publicly perform or modify any content except as expressly permitted by the features of the Service. The Provider may improve, update or reorganise features of the Service from time to time, provided that the core functionality remains materially similar.

11.2 Accessibility features such as captions and audio descriptions are provided where they are made available by the relevant rights holder. Links to third-party websites are provided for convenience only, and the Provider is not responsible for the content or practices of those websites. Except as expressly stated in this Agreement, the Service is provided on an as-available basis without further warranties of any kind.

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Section 12 - Force Majeure

12.1 Formal notices under this Agreement must be sent to the addresses stated in the Order Summary and are effective on receipt. The Subscriber may not transfer this Agreement to another person without the prior written consent of the Provider. If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force and effect.

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13. Your Data

Backup contents are encrypted and are not shared with third parties. Account contact details may be shared with our payment processor to collect fees.